

The National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999

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The National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999

UNION OF INDIA

India

The National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999

Act 44 of 1999

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The National Trust For Welfare Of Persons With Autism, Cerebral Palsy, Mental Retardation And Multiple Disabilities Act, 1999

(44 of 1999)

Last Updated 30th December, 2019 [18/810]

Statement of Objects and Reasons.-The Government of India has become increasingly concerned about the need for affirmative action in favour of persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disability.

2. In acknowledgment of a wide range of competencies among these individuals, the Central Government seeks to set up a National trust to be known as a National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disability. The said Trust will be promotive, proactive and protectionist in nature. It will seek primarily to uphold the rights, promote the development and safeguard the interests of persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disability and their families.

3. Towards this goal, the National Trust will support programme which promote independence, facilitating guardianship where necessary and address the concerns of those special persons who do not have their family support. The Trust will seek to strengthen families and protect the interest of persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disability after the death of their parents.

4. The Trust will be empowered to receive grants, donations, benefactions, bequests and transfers. The Central Government will make a one-time contribution of rupees one hundred crores to the corpus of the Trust to enable it to discharge its responsibilities.

[30th December, 1999]

An Act to provide for the constitution of a body at the national level for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities and for matters connected therewith or incidental thereto.

Be it enacted by Parliament in the Fiftieth Year of the Republic of India as follows:-

Chapter I

Preliminary

1.

Short title and extent .-(1) This Act may be called The National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999.

(2)

It extends to the whole of India [***].

2.

Definitions .-In this Act, unless the context otherwise requires,-

(a)

"autism" means a condition of uneven skill development primarily affecting the communication and social abilities of a person, marked by repetitive and ritualistic behaviour;

(b)

"Board" means Board of trustees constituted under section 3;

(c)

"cerebral palsy" means a group of non-progressive conditions of a person characterised by abnormal motor control posture resulting from brain insult or injuries occurring in the pre-natal, peri-natal or infant period of development;

(d)

"Chairperson" means the Chairperson of the Board appointed under clause (a) of sub-section (4) of section 3;

(e)

"Chief Executive Officer" means the Chief Executive Officer appointed under sub-section (1) of section 8;

(f)

"Member" means a Member of the Board and includes the Chairperson;

(g)

"mental retardation" means a condition of arrested or incomplete development of mind of a person which is specially characterised by sub-normality of intelligence;

(h)

"multiple disabilities" means a combination of two or more disabilities as defined in clause (i) of section 2 of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (

1 of 1996

);

(i)

"notification" means a notification published in the Official Gazette;

(j)

"person with disability" means a person suffering from any of the conditions relating to autism, cerebral palsy, mental

retardation or a combination of any two or more of such conditions and includes a person suffering from severe multiple disability;

(k)

"prescribed" means prescribed by rules made under this Act;

(l)

"professional" means a person who is having special expertise in a field which would promote the welfare of persons with disability;

(m)

"registered organisation" means an association of persons with disability or an association of parents of persons with disability or a voluntary organisation, as the case may be, registered under section 12;

(n)

"regulations" means the regulations made by the Board under this Act;

(o)

"severe disability" means disability with eighty per cent or more of one or more of multiple disabilities;

(p)

"Trust" means the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disability constituted under sub-section (1) of section 3.

Chapter II

The National Trust For Welfare Of Persons With Autism, Cerebral Palsy, Mental Retardation And Multiple Disability, Etc.

3.

Constitution of the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disability, etc .-(1) With effect from such date as the Central Government may, by notification, appoint, there shall be constituted, for the purposes of this Act, a body by the name of the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities, which shall be a body corporate by the name aforesaid, having perpetual succession and a common seal, with power, subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable, and to contract, and shall, by the said name, sue or be sued.

(2)

The general superintendence, direction and management of the affairs and business of the Trust shall vest in a Board which may exercise all powers and do all acts and things which may be exercised or done by the Trust.

(3)

The head office of the Trust shall be at New Delhi and the Board may, with the previous approval of the Central Government, establish offices at other places in India.

(4)

The Board shall consist of-

(a)

a Chairperson to be appointed by the Central Government from amongst the persons having expertise and experience in the field of autism, cerebral palsy, mental retardation and multiple disability;

(b)

nine persons to be appointed in accordance with such procedure as may be prescribed from amongst the registered organisations out of which three Members each shall be from voluntary organisations, association of parents of persons with autism, cerebral palsy, mental retardation and multiple disability and from association of persons with disability, Members:

Provided that initial appointment under this clause shall be made by the Central Government by nomination;

(c)

eight persons not below the rank of Joint Secretary to the Government of India nominated by that Government to represent the Ministries or Departments of Social Justice and Empowerment, Women and Child Development, Health and Family Welfare, Finance, Labour, Education, Urban Affairs and Employment and Rural Employment and Poverty Alleviation, Members, ex officio;

(d)

three persons to be nominated by the Board representing the associations of trade, commerce and industry engaged in philanthropic activities, Members;

(e)

the Chief Executive Officer, who shall be of the rank of Joint Secretary to the Government of India, Member-Secretary, ex officio.

(5)

The Board may associate with itself, in such manner and for such purposes as may be determined by regulations, any person whose assistance or advice it may desire for carrying out the objects of the Trust:

Provided that such person shall have a right to take part in the discussions relevant to that purpose but shall not have a right to vote at a meeting of the Board and shall not be a Member for any other purpose:

Provided further that the maximum number of persons so associated shall not exceed eight and so far as possible the person so associated shall belong to the registered organisation or from the professionals.

4.

Term of office of Chairperson and Members, meeting of Board, etc. -(1) The Chairperson or a Member shall hold office for a term of three years from the date of his appointment [***]

Provided that no person shall hold office as the Chairperson or other Member after he has attained the age of sixty-five years.

(1A)

[The Central Government shall initiate the process for appointment of the Chairperson or Member, as the case may be, at least six months prior to the expiry of the term of office of such Chairperson or Member.]

[Inserted by Act No. 35 of 2018, dated 29.12.2018.]

(2)

The conditions of service of the Chairperson and other Members shall be such as may be prescribed.

(3)

A casual vacancy in the Board shall be filled in accordance with the provisions of section 3 and a person appointed shall hold office only for the remainder of the term for which the Member, in whose place he was appointed, would have held that office.

[Provided that the Central Government may, in case of a casual vacancy in the office of the Chairperson, by order in writing, direct an officer of appropriate level, to perform the functions of the Chairperson until such vacancy is filled in.]

[Inserted by Act No. 35 of 2018, dated 29.12.2018.]

(4)

Before appointing any person as the Chairperson or a Member, the Central Government shall satisfy itself that the person does not and will not, have any such financial or other interest as is likely to affect prejudicially his functions as such Member.

(5)

No Member of the Board shall be a beneficiary of the Trust during the period such Member holds office.

(6)

The Board shall meet at least once in three months at such time and place as may be determined by the Board by regulations and shall observe such rules of procedure in the transaction of business at a meeting as may be prescribed.

(7)

The Chairperson, if for any reason is unable to attend the meeting of the Board, any Member elected by the Members present from amongst themselves at the meeting, shall preside at the meeting.

(8)

All questions which come up before any meeting of the Board shall be decided by a majority of votes of the Members present and voting, and in the event of an equality of votes, the Chairperson, or in his absence, the person presiding shall have a second or casting vote.

5.

Resignation of Chairperson and Members. -(1) The Chairperson may resign his office by writing under his hand addressed to the Central Government:

Provided that the Chairperson shall continue in office [until his resignation is accepted by the Central Government.]

(2)

A Member may resign from office by writing under his hand addressed to the Chairperson.

6.

Disqualifications .-No person shall be a Member if he-

- (a) is, or becomes, of unsound mind or is so declared by a competent Court; or
- (b) is, or has been, convicted of an offence, which in the opinion of the Central Government, involves moral turpitude; or
- (c) is, or at any time has been, adjudicated as an insolvent.

7.

Vacation of office by Members .-If a Member-

- (a) becomes subject to any of the disqualifications mentioned in section 6; or
- (b) is, without obtaining leave of absence, absent from three consecutive meetings of the Board; or
- (c) tenders his resignation under section 5, his seat shall thereupon become vacant.

8.

Chief Executive Officer and staff of Trust .-(1) The Central Government shall appoint the Chief Executive Officer to exercise such powers and perform such duties under the direction of the Board as may be prescribed or as may be delegated to him by the Chairperson.

(2)

The Board shall, with the previous approval of the Central Government, appoint such other officers and employees as it considers necessary to carry out the objectives of the Trust.

(3)

The salary and allowances payable to, and the other terms and conditions of service of, the Chief Executive Officer, other officers and employees of the Trust shall be such as may be determined by regulations.

9.

Vacancies in Board not to invalidate acts, etc .-No act or proceeding of the Board shall be called in question on the grounds merely of the existence of any vacancy in, or any defect in the constitution of, the Board.

Chapter III

Objects Of The Trust

10.

Objects of Trust .-The objects of the Trust shall be-

- (a) to enable and empower persons with disability to live as independently and as fully as possible within and as close to the community to which they belong;
- (b) to strengthen facilities to provide support to persons with disability to live within their own families;
- (c) to extend support to registered organisations to provide need based services during the period of crisis in the family of persons with disability;
- (d) to deal with problems of persons with disability who do not have family support;
- (e) to promote measures for the care and protection of persons with disability in the event of death of their parent or guardian;
- (f) to evolve procedure for the appointment of guardians and trustees for persons with disability requiring such protection;
- (g) to facilitate the realisation of equal opportunities, protection of rights and full participation of persons with disability; and
- (h) to do any other act which is incidental to the aforesaid objects.

Chapter IV

Powers And Duties Of The Board

11.

Powers and duties of Board .-(1) The Board shall,-

(a)

receive from the Central Government a one-time contribution of rupees one hundred crores for a corpus, the income whereof shall be utilised to provide for adequate standard of living for persons with disability;

(b)

receive bequest of movable property from any person for the benefit of the persons with disability in general and for furtherance of the objectives of the Trust in particular:

Provided that it shall be obligatory on the part of the Board to make arrangement for adequate standard of living for the beneficiary named in the bequest, if any, and to utilise the property bequeathed for any other purpose for which the bequest has been made:

Provided further that the Board shall not be under any obligation to utilise the entire amount mentioned in the bequest for the exclusive benefit of the persons with disability named as beneficiary in the bequest;

(c)

receive from the Central Government such sums as may be considered necessary in each financial year for providing financial assistance to registered organisations for carrying out any approved programme.

(2)

For the purposes of sub-section (1), the expression "approved programme" means-

(a)

any programme which promotes independent living in the community for persons with disability by-

(i)

creating a conducive environment in the community;

(ii)

counselling and training of family members of persons with disability;

(iii)

setting up of adult training units, individual and group homes;

(b)

any programme which promotes respite, care, foster family care or day care service for persons with disability;

(c)

setting up of residential hostels and residential homes for persons with disability;

(d)

development of self-help groups of persons with disability to pursue the realisation of their rights;

(e)

setting up of Local Level Committee to grant approval for guardianship; and

(f)

such other programmes which promote the objectives of the Trust.

(3)

While earmarking funds for the purposes of clause (c) of sub-section (2), preference shall be given to women with disability or to persons with severe disability and to senior citizens with disability.

Explanation.-For the purposes of this sub-section, the expression,-

(a)

"persons with severe disability" shall have the same meaning as is assigned to it under sub-section (4) of section 56 of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (1 of 1996

);

(b)

"senior citizen" means a person who is above the age of sixty-five years or more.

Chapter V

Procedure For Registration

12.

Procedure for registration .-(1) Any association of persons with disability, or any association of parents of persons with disability or a voluntary organisation whose main object is promotion of welfare of persons with disability may make an application for registration to the Board.

(2)

An application for registration shall be made in such form and manner and at such place as the Board may by regulation provide and shall contain such particulars and accompanied with such documents and such fees as may be provided in the regulations.

(3)

On receipt of application for registration, the Board may make such enquiries as it thinks fit in respect of genuineness of the application and correctness of any particulars thereon.

(4)

Upon receipt of such application the Board shall either grant registration to the applicant or reject such application for reasons to be recorded in writing:

Provided that where registration has been refused to the applicant, the said applicant may again make an application for registration after removing defects, if any, in its previous application.

Chapter VI

Local Level Committees

13.

Constitution of Local Level Committees .-(1) The Board shall constitute a Local Level Committee for such area as may be specified by it from time to time.

(2)

A Local Level Committee shall consist of-

(a)

an officer of the civil service of the Union or of the State, not below the rank of a District Magistrate or a District Commissioner of a district;

(b)

a representative of a registered organisation; and

(c)

a person with disability as defined in clause (t) of section 2 of the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 (

1 of 1996

).

(3)

A Local Level Committee shall continue to work for a period of three years from the date of its constitution or till such time it is reconstituted by the Board.

(4)

A Local Level Committee shall meet at least once in every three months or at such interval as may be necessary.

14.

Appointment for guardianship .-(1) A parent of a person with disability or his relative may make an application to the Local Level Committee for appointment of any person of his choice to act as a guardian of the persons with disability.

(2)

Any registered organisation may make an application in the prescribed form to the Local Level Committee for appointment of a guardian for a person with disability:

Provided that no such application shall be entertained by the Local Level Committee, unless the consent of the guardian of the disabled person is also obtained.

(3)

While considering the application for appointment of a guardian, the Local Level Committee shall consider-

(a)

whether the person with disability needs a guardian;

(b)

the purposes for which the guardianship is required for person with disability.

(4)

The Local Level Committee shall receive, process and decide applications received under sub-sections (1) and (2), in such manner as may be determined by regulations:

Provided that while making recommendation for the appointment of a guardian, the Local Level Committee shall provide for the obligations which are to be fulfilled by the guardian.

(5)

The Local Level Committee shall send to the Board the particulars of the applications received by it and orders passed thereon at such interval as may be determined by regulations.

15.

Duties of guardian .-Every person appointed as a guardian of a person with disability under this Chapter shall, wherever required, either have the care of such person with disability and his property or be responsible for the maintenance of the person with disability.

16.

Guardian to furnish inventory and annual accounts .-(1) Every person appointed as a guardian under section 14 shall, within a period of six months from the date of his appointment, deliver to the authority which appointed him, an inventory of immovable property belonging to the person with disability, and all assets and other movable property received on behalf of the person with disability, together with a statement of all claims due to all and debts and liabilities due by such person with disability.

(2)

Every guardian shall also furnish to the said appointing authority within a period of three months at the close of every financial year, an account of the property and assets in his charge, the sums received and disbursed on account of the person with disability and the balance remaining with him.

17.

Removal of guardian .-(1) Whenever a parent or a relative of a person with disability or a registered organisation finds that the guardian is-

(a)

abusing or neglecting a person with disability; or

(b)

misappropriating or neglecting the property, it may, in accordance with the prescribed procedure, apply to the committee for the removal of such guardian.

(2)

Upon receiving such application the committee may, if it is satisfied that there is a ground for removal and for reasons to be recorded in writing, remove such guardian and appoint a new guardian in his place or if such a guardian is not available make such other arrangements as may be necessary for the care and protection of person with disability.

(3)

Any person removed under sub-section (2) shall be bound to deliver the charge of all property of the person with disability to the new guardian, and to account for all moneys received or disbursed by him.

Explanation.-For the purposes for this Chapter, the expression "relative" includes any person related to the person with disability by blood, marriage or adoption.

Chapter VII

Accountability And Monitoring

18.

Accountability .-(1) The books and documents in the possession of the Board shall be open to inspection by any registered organisation.

(2)

Any registered organisation can submit a written requisition to the Board for getting a copy of any book or document maintained by the Board.

(3)

The Board shall frame such regulations as it thinks necessary for allowing the access of any book or document to a registered organisation.

19.

Monitoring .-The Board shall determine by regulations the procedure for evaluating the pre-funding status of registered organisations seeking financial assistance from it and such regulations may also provide for the guidelines for monitoring and evaluating the activities of the registered organisations who are receiving financial assistance from the Trust.

20.

Annual general meeting .-(1) The Board shall in each year hold an annual general meeting of registered organisations, and not more than six months shall elapse between the date of one annual general meeting and that of the next.

(2)

A notice of the annual general meeting alongwith a statement of accounts and records of its activities during the preceding year shall be sent by the Board to every registered organisation at such time as may be determined by regulations.

(3)

The quorum for such meeting shall be such number of persons of the registered organisations as may be determined by regulations.

Chapter VIII

Finance, Accounts And Audit

21.

Grants by the Central Government .-The Central Government may, after due appropriation made by Parliament by law in this behalf, make to the Trust a one-time contribution of rupees one hundred crores for a corpus, the income whereof may be utilised to achieve the objects of the Trust under this Act.

22.

Fund .-(1) There shall be constituted a Fund to be called the National Trust for Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Fund and there shall be credited thereto-

(a)

all moneys received from the Central Government;

(b)

all moneys received by the Trust by way of grants, gifts, donations, benefactions, bequests or transfers;

(c)

all moneys received by the Trust in any other manner or from any other source.

(2)

All moneys belonging to the fund shall be deposited in such banks or invested in such manner as the Board may, subject to the approval of the Central Government, decide.

(3)

The funds shall be applied towards meeting the administrative and other expenses of the Trust including expenses incurred in the exercise of its powers and performance of duties by the Board in relation to any of its activities under section 10 or for anything relatable thereto.

23.

Budget .-The Board shall prepare, in such form and at such time in each financial year as may be prescribed, the budget for the next financial year showing the estimated receipt and expenditure of the Trust and shall forward the same to the Central Government.

24.

Accounts and audit .-(1) The Board shall maintain proper accounts and other relevant records and prepare an annual statement of accounts of the Trust including the income and expenditure accounts in such form as the Central Government may prescribe and in accordance with such general direction as may be issued by that Government in consultation with the Comptroller and Auditor-General of India.

(2)

The accounts of the Trust shall be audited by the Comptroller and Auditor-General of India at such intervals as may be specified by him and any expenditure incurred by him in connection with such audit shall be payable by the Board to the Comptroller and Auditor-General of India.

(3)

The Comptroller and Auditor-General of India and any other person appointed by him in connection with the audit of the accounts of the Trust shall have the same rights, privileges and authority in connection with such audit as the Comptroller and Auditor-General of India generally has in connection with the audit of the Government accounts and in particular, shall have the right to demand the production of books of account, connected vouchers and other documents and papers and to inspect any of the offices of the Trust.

(4)

The accounts of the Trust as certified by the Comptroller and Auditor-General of India or any other person appointed by him in this behalf, together with the audit report thereon, shall be forwarded annually to the Central Government, and that Government shall cause the same to be laid before each House of Parliament.

25.

Annual report .-The Board shall prepare every year, in such form and within such time as may be prescribed, an annual report giving a true and full account of its activities during the previous year and copies thereof shall be forwarded to the Central Government and that Government shall cause the same to be laid before each House of Parliament.

26.

Authentication of orders, etc .-All orders and decisions of the Board and instruments issued in the name of the Trust shall be authenticated by the signature of the Chairperson, the Chief Executive Officer or any other officer authorised by the Chairperson in this behalf.

27.

Returns and information .-The Board shall furnish to the Central Government such reports, returns and other information as that Government may require from time to time.

Chapter IX

Miscellaneous

28.

Power of Central Government to issue directions .-(1) Without prejudice to the foregoing provisions of this Act, the Board shall, in exercise of its powers or the performance of its duties under this Act, be bound by such directions on questions of policy as the Central Government may give in writing to it from time to time:

Provided that the Board shall, as far as practicable, be given an opportunity to express its views before any direction is given under this sub-section.

(2)

The decision of the Central Government whether a question is one of policy or not shall be final.

29.

Power of Central Government to supersede Board .-(1) If the Central Government on the complaint of a registered organisation or otherwise has reason to believe that the Board is unable to perform or has persistently made default in the performance of the duties imposed on it, the Central Government may issue notice to the Board asking why it should not be superseded:

Provided that no order superseding the Board shall be made by the Central Government, unless a notice affording reasonable opportunity to the Board has been given in writing that why it should not be superseded.

(2)

The Central Government after recording its reasons in writing and by issuing a notification in the Official Gazette supersede the Board for a period of not more than six months:

Provided that on the expiration of the period of supersession, the Central Government may reconstitute the Board, in accordance with section 3.

(3)

Upon the publication of the notification under sub-section (2),-

(a)

all the Members of the Board shall, notwithstanding that their term of office had not expired as on the date of supersession, vacate their office as such Members;

(b)

all the powers and duties which may, by or under the provisions of this Act, be exercised or performed by or on behalf of the Trust shall, during the period of supersession, be exercised and performed by such person or persons as the Central Government may direct.

(4)

On the expiration of the period of supersession specified in the notification issued under sub-section (2), the Central Government may-

(a)

extend the period of supersession for such further period as it may consider necessary so that the total period of supersession does not exceed more than six months; or

(b)

reconstitute the Board in the manner provided in section 3.

30.

Exemption from tax on income .-Notwithstanding anything contained in the Income-tax Act, 1961 (43 of 1961

), or any other law for the time being in force relating to tax on income, profits or gains, the Trust shall not be liable to pay income-tax or any other tax in respect of its income, profits or gains derived.

31.

Protection of action taken in good faith .-No suit, prosecution or other legal proceeding shall lie against the Central Government or the Trust or any Member of the Board or Chief Executive Officer or any officer or other employee of the Trust or any other person authorised by the Board to perform duties under this Act for any loss or damage caused or likely to be caused by anything which is done in good faith.

Explanation.-For the purposes of this section, the expression "good faith" shall have the same meaning as is assigned to it in the Indian Penal Code (45 of 1860).

32.

Chairperson, Members and officers of Trust to be public servants .-All Members, Chief Executive Officer, other officers and employees of the Trust shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be public servant within the meaning of section 21 of the Indian Penal Code (45 of 1860).

33.

Delegation .-The Board may, by general or special order in writing, delegate to the Chairperson or any Member or any officer of the Trust or any other person subject to such conditions and limitations, if any, as may be specified in the order such of its powers under this Act (except the power to make regulations under section 35) as it may deem necessary.

34.

Power to make rules .-(1) The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing powers, such rules may provide for all or any of the following matters, namely:-

(a)

the procedure in accordance with which the persons representing registered organisation shall be elected under clause (b) of sub-section (4) of section 3.

(b)

the conditions of service of the Chairperson and Members under sub-section (2) of section 4;

(c)

the rules of procedure in the transaction of business at meetings of the Board under section (6) of section 4;

(d)

the powers and duties of the Chief Executive Officer under sub-section (1) of section 8;

(e)

the form in which an application for guardianship may be made by a registered organisation under sub-section (2) of section 14;

(f)

the procedure in accordance with which a guardian may be removed under section 17;

(g)

the form in which, and the time within which, the budget of the Trust shall be forwarded to the Central Government under section 23;

(h)

the form in which the annual statement of accounts shall be maintained under sub-section (1) of section 24;

(i)

the form in which, and the time within which, the annual reports shall be prepared and forwarded under section 25;

(j)

any other matter which is required to be, or may be, prescribed.

35.

Power to make regulations .-(1) The Board may, with the previous approval of the Central Government, by notification in the Official Gazette, make regulations consistent with this Act and rules generally to carry out the purposes of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such regulations may provide for all or any of the following matters, namely:-

(a)

the manner and purpose for which a person may be associated under sub-section (5) of section 3;

(b)

the time and place at which the Board shall meet under sub-section (6) of section 4;

(c)

the terms and conditions of service of, Chief Executive Officer, other officers and employees of the Trust under sub-section (3) of section 8;

(d)

the form and manner in which the application shall be made for registration under sub-section (2) of section 12 and the particulars which such application shall contain under that sub-section;

(e)

the manner in which application for guardianship shall be received, processed and decided by the Local Level Committee under sub-section (4) of section 14;

(f)

the particulars of applications and orders passed thereon by the Local Level Committee under sub-section (5) of section 14;

(g)

the procedure for evaluating the pre-funding status of the registered organisations and framing of guidelines for monitoring and evaluating the activities of such registered organisations under section 19;

(h)

the time within which notice for annual general meeting shall be sent and quorum for such meeting under sub-sections (2) and (3) of section 20; and

(i)

any other matter which is required to be, or may be, provided by regulations.

36.

Rules and regulations to be laid before Parliament .-Every rule and every regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or regulation or both Houses agree that the rule or regulation should not be made, the rule or regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule or regulation.

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